

Research Project:
**Unveiling the Dynamics and Consequences of Child Marriage and
Pregnancy in Brazil**
Jan/2025

Project description

Child marriage—defined as any formal or informal union involving at least one party under 18—violates the rights of children and adolescents. It exacerbates violence, limits educational and economic opportunities, increases early pregnancies, and raises maternal and infant mortality rates. Additionally, it contributes to intergenerational poverty and other social issues, making it a multidimensional challenge (Cardoso et al., 2022).

In Brazil, legislation sets 18 as the minimum age for marriage. However, individuals aged 16 to 18 may marry conditionally on parental consent. Until 2019, minors under 18 could marry under other specific circumstances, such as pregnancy or to avoid criminal penalties, if judicial authorization was obtained. The amendment introduced by Law No. 13,811 of March 12, 2019, modified Article 1,520 of the 2002 Civil Code, eliminating these exceptions. Currently, the law strictly prohibits marriage for individuals under 16 and allows those aged 16 and older to marry only with parental consent. Before the law change, a rapist could avoid punishment by marrying their victim if she was under 18. This included cases where girls under 14 became pregnant, which is classified as statutory rape under Brazilian law.

Preliminary analysis of civil marriage data¹ indicates a 70% decline in child marriage between 2003 and 2022, aligning with trends in other age groups. However, in 2022 alone, 15,172 formal unions involving minors under 18 were registered. Despite legal prohibitions under the new law, the civil registry data reveal the persistence of marriages involving minors under 16- in 2022, 260 such unions were registered.

These data demonstrate that, although the phenomenon is decreasing, it remains a pressing issue that requires ongoing attention, especially given the underreporting of cases. Available figures reflect only formal unions registered in civil registries, excluding informal unions, which are more prevalent among child marriages, making the true scope of the issue even more concerning and challenging to quantify.

Additionally, analysis of birth records data² shows that 143,786 births were recorded to mothers under 18, including 12,142 live births to mothers under 14. Those Alarminglly, 12,142 births involved mothers aged 14 or younger—a group for which Brazilian law

¹ IBGE – População: Estatísticas do Registro Civil [Estatísticas do Registro Civil | IBGE](#)

² Sistema de Informações sobre Nascidos Vivos – SINASC (Secretaria de Vigilância em Saúde e Ambiente (SVSA/MS). [Sistema de Informações sobre Nascidos Vivos — Ministério da Saúde](#)

presumes sexual violence. Cassimiro et al, 2020, reveal that only 1.3%³ of births to mothers aged 14 or younger were recorded as cases of sexual abuse, despite the legal presumption of sexual violence and the mandatory reporting requirement for healthcare professionals, as established by Ordinance No. 204/2016.

Despite these alarming figures, child marriage and pregnancy in Brazil have received limited attention, particularly within the economics literature. There is a lack of a systematic and comprehensive understanding of the most vulnerable regions, high-risk child profiles, and the related consequences—such as impacts on human capital accumulation, labor market outcomes, and fertility trends. Most existing studies on Brazil rely on a single dataset (e.g., household surveys or administrative records) and are predominantly focused on social science and health perspectives, leaving critical economic questions unanswered. Furthermore, there is a notable gap in quantitative studies assessing the effectiveness of policy interventions in Brazil aimed at delaying marriage and pregnancy among individuals under 18.

Based on this context, this research examines key issues related to child marriage and pregnancy in Brazil, aiming to deepen the understanding of these phenomena and their interconnections. This research project has two broader goals:

- To conduct a comprehensive descriptive analysis of child marriage and pregnancy in Brazil, leveraging all relevant databases.
- Understand the effects of the 2019 law change in actual (formal and informal) child marriage and its correlated behaviors, such as early childbearing, educational and labor market outcomes as well as fertility choices.

These two goals are closely linked with the existing economics literature that has addressed the subject. McGavock (2021) explores a legal change in some Ethiopia's regions that raised the legal minimum age of marriage from 15 to 18. Levering from a policy staggered roll out, the study applies a difference-in differences estimation to show that the reform has delayed marriages for girls under 16 by 17%, particularly in areas with prior high incidence of child marriage. However, the reform has no effects among the ethnic groups with strongest social norms about marriage. Overall, the reform has impacts in early pregnancy and total fertility trends.

On the other hand, Batyra et al. (2021) examine the effects of laws that reduced the minimum marriage age in six countries (Benin, Mauritania, Nepal, Bhutan, Kazakhstan, and Tajikistan) using a regression discontinuity design. Their findings suggest that the legal changes had a limited impact on delaying the age of marriage for girls in Benin, Mauritania, Kazakhstan, and Bhutan. In Tajikistan and Nepal, the results indicate a reduction in marriage age; however, these findings are not robust across all model specifications. The authors highlight the

³ Based on comparisons using SINASC and SINAN (Sistema de Informação de Agravos de Notificação [VIVA/SINAN - Vigilância Contínua — Ministério da Saúde](#))

importance of stronger enforcement mechanisms and improved monitoring to ensure the effectiveness of such legal reforms

From a different perspective, Le et al. (2025) document that an education reform in Vietnam, which introduced compulsory primary schooling, led to an increase in the age at marriage and age at first birth. This effect was primarily driven by an increase in the duration of girls' schooling.

Buchmann et al. (2023) investigate which types of policies are most effective in reducing child marriage. Using an experimental evaluation in Bangladesh, they show that offering small financial incentives can significantly delay marriage—girls eligible for the incentive are 19% less likely to marry underage. In contrast, efforts to directly influence social norms may produce little effects. These findings align with a signaling model proposed by the authors."

This research project is grounded in economic literature that explores the relationships between child marriage and the violation of children's rights, human capital accumulation, health conditions, and fertility trends. Despite extensive research in these areas, the specific effects and relationships of child marriage in Brazil remain largely unknown. The findings of this study will not only deepen our understanding of child marriage in Brazil but also contribute to the global discourse on child marriage interventions. Insights into the socioeconomic and legal dynamics in Brazil may be applicable to other middle-income countries facing similar challenges, providing a comparative framework for evaluating the effectiveness of law reforms in reducing child marriage and enhancing child welfare outcomes.

To achieve these objectives, the study is organized into two phases. Phase one involves an exhaustive analysis of available databases, including civil registry data and household surveys (PNAD and PNS), to identify informal child marriages, especially those involving minors under 14 and 16. This analysis will help uncover discrepancies between formal and informal unions and provide a socioeconomic profile of these young individuals in terms of education, labor market participation, health, and fertility trends. Additionally, birth registry data (SINASC) will be used to fully characterize the relationships between child marriage and pregnancy.

Phase two focuses on the second objective, conducting a causal inference analysis to explore changes in Brazilian law. Considering the law change as an exogenous variation, this phase aims to apply a quasi-experimental approach to measure the law's effects on reducing the age of formal and informal marriage. It will also examine potential effects on related areas such as school enrollment, labor market outcomes, girls' health and fertility decisions.

The project aims to produce high-quality academic publications (one for each phase) in peer-reviewed journals, and detailed policy briefs tailored to inform Brazilian policymakers and international organizations about best practices in addressing child marriage (also one report for each phase) as well as publicly accessible datasets for further research. These

outputs will serve as a resource for both academic and policymaking communities. The expected deliverables are listed in the timeline section.

References

Batyra, E., & Pesando, L. M. (2021). Trends in child marriage and new evidence on the selective impact of changes in age-at-marriage laws on early marriage. *SSM-Population Health*, 14, 100811. <https://doi.org/10.1016/j.ssmph.2021.100811>

Buchmann, N., Field, E., Glennerster, R., Nazneen, S., & Wang, X. Y. (2023). A signal to end child marriage: Theory and experimental evidence from Bangladesh. *American Economic Review*, 113(10), 2645-2688.

Cardoso, A. S., Valério, I. D., Ramos, C. I., & Machado, K. P. (2022). Casamento infantil no Brasil: uma análise da Pesquisa Nacional de Saúde. *Ciência & Saúde Coletiva*, 27, 417-426.

Casemiro da Silva, A. J., Trindade, R. F. C. D., & Oliveira, L. L. F. D. (2020). Presunção do abuso sexual em crianças e adolescentes: vulnerabilidade da gravidez antes dos 14 anos. *Revista Brasileira de Enfermagem*, 73, e20190143.

Le, D. D., Nguyen, M. T., & Ibuka, Y. (2025). Intergenerational effects of education on child mortality: Evidence from the compulsory primary schooling law in Vietnam. *World Development*, 185, 106810. <https://doi.org/10.1016/j.worlddev.2024.106810>

McGavock, T. (2021). Here waits the bride? The effect of Ethiopia's child marriage law. *Journal of Development Economics*, 149, 102580. <https://doi.org/10.1016/j.jdeveco.2020.102580>